

State of Alabama Unified Judicial System Form CR-65 Rev. 10/2024 Page 1.	PETITION FOR EXPUNGEMENT OF RECORDS (Section 15-27-1 et seq., Ala. Code 1975)	Court Case Number CC-2021-004217 (Assigned by Clerk)
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IN THE CIRCUIT COURT OF Montgomery COUNTY, ALABAMA
(Name of County)

Reyes Jordan Avery, v. **STATE OF ALABAMA,**
(Last Name) (First Name) (Middle Name) RESPONDENT.
PETITIONER,

<u>412 Magnolia Avenue</u> (Street Address)	<u>jordan.reyes@example.org</u> (E-mail Address)
<u>Montgomery, AL 36104</u> (City, State, Zip Code)	<u>334-555-0142</u> (Telephone Number)
<u>XXX - XX -</u> (Social Security Number, Last four digits only)	<u>06/14/1988</u> (Date of Birth)

COURT CASE NUMBER TO BE EXPUNGED: CC-2021-004217

CHARGE OR CONVICTION TO BE EXPUNGED: _____
(Only one offense per petition; Multi-count cases require multiple petitions)

Section I

I, the above-named Defendant/Petitioner, was **charged** with the above-named offense, which is a misdemeanor, violation, traffic violation or municipal ordinance violation: (Check ONLY one (1) of the eight (8) options below: If none apply, charge is *not eligible for expungement*)

[] the charge has been dismissed with prejudice and more than 90 days have passed.

[] the charge has been no billed by a grand jury and more than 90 days have passed.

[] I was found not guilty of the charge and more than 90 days have passed.

[] the charge has been nolle prossed without conditions, more than 90 days have passed, and the charge or charges have not been refiled.

[] an indictment has been quashed and the statute of limitations for refileing the charge or charges has expired or the prosecuting agency confirms that the charge or charges will not be refiled.

[] the charge was dismissed after successful completion of a drug court program, mental health court program, diversion program, veteran's court, or any court-approved deferred prosecution program, and more than two expungements have not been granted for the successful completion of these program(s), and the petition for expungement has not been filed before one year from the date of successful completion of a program listed in this paragraph.

[✓] the charge was dismissed without prejudice more than one year ago, has not been refiled, and I have not been convicted of any other felony or misdemeanor crime, violation, or traffic violation, excluding minor traffic violations, during the previous two years.

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☐ I can prove by a preponderance of the evidence that I was a victim of human trafficking, and committed the misdemeanor offense, violation, traffic violation, or municipal ordinance violation during the period were being trafficked, and you would not have committed the offense or violation but for being trafficked.

Section II

I, the above-named Defendant/Petitioner, was **convicted** of the above-named offense, which is a misdemeanor, violation, traffic violation or municipal ordinance violation or I was adjudged a youthful offender and the underlying charge is a misdemeanor offense, violation, traffic violation, or municipal ordinance violation, and more than two expungements *have not been granted*: (AND ALL OF THE FOLLOWING HAVE OCCURRED. If you have not checked all seven boxes, the conviction is *not eligible for expungement*)

- ☐ all probation or parole requirements have been completed, including payment of all fines, costs, restitution, and other court-ordered amounts, and are evidenced by the applicable court or agency.
- ☐ Three years have passed from the date of conviction.
- ☐ At the time of the offense, I was not operating a commercial motor or was not holding a commercial driver license or commercial learner permit for a conviction of an offense enumerated in 49 C.F.R. §383.51
- ☐ The conviction is not a violent offense, as provided in [Section 12-25-32](#).
- ☐ The conviction is not a sex offense, as provided in [Section 15-20A-5](#).
- ☐ The conviction is not an offense involving moral turpitude, as provided in [Section 17-3-30.1](#), or was classified as a felony at the time of the conviction, but has been reclassified as a misdemeanor, pursuant to [Act 2015-185](#), and I have not been arrested for any offense, excluding minor traffic violations, 15 years prior to the filing of this petition.
- ☐ The conviction is not a serious traffic offense, as provided in Article 9 of Chapter 5A of Title 32.

Section III

- I, the above-named Defendant/Petitioner, was **charged** with the above-named offense, a felony: (Check ONLY one (1) of the eight (8) options below: If none apply, the charge is *not eligible for expungement*)
- ☐ the charge has been dismissed with prejudice and more than 90 days have passed.
 - ☐ the charge has been no billed by a grand jury and more than 90 days have passed.
 - ☐ I was found not guilty of the charge and more than 90 days have passed.

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[] the charge has been nolle prossed without conditions, and more than 90 days have passed, and the charge or charges have not been refiled.

[] the indictment has been quashed and the statute of limitations for refileing the charge or charges has expired or the prosecuting agency confirms that the charge or charges will not be refiled.

[] the charge was dismissed after successful completion of a drug court program, mental health court program, diversion program, veteran's court, or any court-approved deferred prosecution program, and more than two expungements have not been granted for the successful completion of these program(s), and the petition for expungement has not been filed before one year from the date of successful completion of a program listed in this paragraph.

[] the charge was dismissed without prejudice more than five years ago, has not been refiled, and I have not been convicted of any other felony or misdemeanor crime, any violation, or any traffic violation, excluding minor traffic violations, during the previous five years.

[] I can prove by a preponderance of the evidence that I was a victim of human trafficking, and committed the felony offense during the period I was being trafficked, and would not have committed the felony offense but for being trafficked.

Section IV

[] I, the above-named Defendant/Petitioner, was **convicted** of the above-named offense, which is one of the following violent felony offenses as defined in [Section 12-25-32](#), and can show that the commission of the violent felony occurred while I was being trafficked, and would not have been committed but for being trafficked. If you cannot prove this to the court, *the conviction for any violent felony below is not eligible for expungement*:

- Promoting prostitution in the first degree pursuant to [Section 13A-12-111](#).
 - Domestic violence in the third degree pursuant to [subsection \(d\) of Section 13A-6-132](#).
 - Production of obscene matter involving a person under the age of 17 years pursuant to [Section 13A-12-197](#);
 - *If none apply, this conviction is not eligible for expungement.*
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Section V

I, the above-named Defendant/Petitioner, was **convicted of** the above-named offense, a felony, and more than one expungement has not been granted (AND ALL OF THE FOLLOWING HAVE OCCURRED. If you have not checked all eight boxes, the conviction is *not eligible for expungement*):

[] I was granted a certificate of pardon with restoration of civil and political rights for the conviction from the Board of Pardons and Paroles.

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☐ All civil and political rights that were forfeited as a result of the conviction have been restored. ☐ One hundred eighty days have passed from the date of the issuance of the certification of pardon. ☐ the conviction is not a violent offense, as provided in Section 12-25-32, unless it falls within an exception under Section IV. ☐ the conviction is not a sex offense, as provided in Section 15-20A-5. ☐ the conviction is not an offense involving moral turpitude, as provided in Section 17-3-30.1, or was classified as a felony at the time of the conviction, but has been reclassified as a misdemeanor, pursuant to Act 2015-185, and I have not been arrested for any offense, excluding minor traffic violations, 15 years prior to the filing of the petition. ☐ The conviction is not a serious traffic offense, as provided in Article 9 of Chapter 5A of Title 32. ☐ At the time of the offense, I was not operating a commercial motor vehicle or was not holding a commercial driver license or commercial learner permit for a conviction of an offense enumerated in 49 C.F.R. § 383.51.		
Additional Information: <i>Please be advised that where the law places limitations on the number of expungements, one expungement shall include all charges and convictions stemming from the same arrest or incident. If the Court <u>does not</u> determine the Petitioner to be indigent and does not waive the \$500.00 filing fee, when the Petitioner is seeking the expungement of multiple charges arising from one arrest, only one filing fee shall be paid. When the Petitioner is seeking the expungement of multiple charges arising from multiple arrests, a filing fee for each arrest shall be paid.</i> <i>Records related to offenses and convictions may be disclosed to a criminal justice agency, district attorney, or prosecuting authority for criminal investigation purposes, a utility and its agents and affiliates, the Department of Human Resources for the purpose of investigation or assessment in order to protect children or vulnerable adults, or any entities or services providing information to banking, insurance, and other financial institutions as required for various requirements as provided in state and federal law.</i> <i>Further, any criminal charges that are expunged or are pending expungement shall be available for use by any attorneys, officers of the Court, or the Court itself in any civil matters related to the criminal charges expunged or seeking to be expunged regardless of the outcome of the petitioned expungement. At the conclusion of the pending civil matter, all references to the criminal charges expunged or to be expunged shall be redacted in the event the criminal charges are expunged.</i>		

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Attached to this Petition are: *(Petition must include either item 1 or item 2; All Petitions must include item 3.)*

☐ (1) a certified record of arrest from the appropriate agency for the court record I seek to have expunged;

☐ (2) a certified record of disposition or a certified record of the case action summary from the appropriate court for the court record I seek to have expunged;

☐ (3) a certified official criminal record obtained from the Alabama Law Enforcement Agency (ALEA).

I am providing the following additional information as required by § 15-27-1 et seq. Ala. Code 1975:
(Petitioner must specify each of the following:)

1. Criminal charge or conviction from the record to be considered:

2. Grounds for, or reasons why you seek, expungement:

3. The agency or department that made the arrest:

4. Any agency or department where the Petitioner was booked or was incarcerated or detained pursuant to the arrest or charge sought to be expunged: ***(There is no way for the Court to successfully expunge records that are not indicated in the Petition or held by entities not served. Therefore, if the Petitioner was not booked, incarcerated or detained pursuant to arrest on the above-listed charge, that must be indicated here.)***

Further, **I have satisfied and paid in full all terms and conditions**, including court ordered restitution, including interest, to any victim or the Alabama Crime Victim’s Compensation Commission, as well as court costs, fines, or statutory fees ordered by the sentencing court to have been paid, absent a finding of indigency by the court.

FOR EXPUNGEMENT OF RECORDS

(Section 15-27-1 et seq., Ala. Code 1975)

Court Case Number

CC-2021-004217

I swear or affirm, under the penalty of perjury:

- (1) that the allegations I have made in this Petition are true and correct;
- (2) that I have satisfied the requirements set out in § 15-27-1 et seq. Ala. Code 1975; and
- (3) (Select one of the following):

☐ that I have not previously applied for an expungement in this or any other jurisdiction.

☐ that I have previously filed for an expungement. My previous expungement was filed in _____ COUNTY and it was given Court Case Number _____. That previous petition for expungement was ☐ granted ☐ denied.

Signature of Petitioner/Affiant

☐ *pro se (Not represented by an attorney)*

Personally appeared before the undersigned, a notary public/officer duly authorized to administer oaths, Jordan Avery Reyes, Petitioner named in the foregoing Petition, who being duly sworn, states that
(Printed Name of Petitioner)
the facts set forth in the foregoing Petition are true and correct to the best of his or her information and belief.

Sworn to and subscribed before me this _____ day of _____, _____.

Notary Public/Officer Authorized to Administer Oaths

Printed or Typed Name of Officer Authorized to Administer Oaths/Notary Public

(Notary Public Only: My Commission Expires on _____ (Date)).

Printed or Typed Name of Attorney & AL State Bar No.

Signature of Attorney

Business Address of Attorney

City State Zip Code

Telephone Number

E-mail Address

**PETITION FOR EXPUNGEMENT OF
RECORDS
(Certificate of Service)**

(Section 15-27-1 et seq., Ala. Code 1975)

Court Case Number

(This page is a form Certificate of Service that can be used by the Petitioner to perfect statutorily-required service as well as to serve any other entities holding records the Petitioner wants expunged. A separate form should be filled out and signed by the person who served the party. Include as many copies of this page as necessary to show service on all parties, persons, or entities.

NOTE: Records held by parties who are not served may not be successfully expunged, or expungement may be substantially delayed. Please understand that if you do not provide the name and address of any agency or entity in possession of records you want expunged, the Court has no way of finding those records and successfully completing the expungement process. Furthermore, if those entities are not properly served, the Court has no authority to order those records expunged.)

(ATTORNEYS: YOU ARE NOT REQUIRED TO USE THIS FORM, BUT YOUR PETITION MUST INCLUDE A CERTIFICATE OF SERVICE THAT COMPLIES WITH ALA. CODE §15-27-3(C), AND THE ALABAMA RULES OF CIVIL PROCEDURE.)

I, _____, (print your name, or the name of the person who has personal knowledge of the service),
certify that I have this date delivered a copy of the foregoing Petition For Expungement of Records to the following court, agency,
or other entity pursuant to Ala. Code 1975, § 15-27-3(c): (Check only one box per copy of this form)

☐ District Attorney ☐ Municipal Chief of Police ☐ Sheriff ☐ State Troopers (Sec. of ALEA)

☐ Clerk of the Circuit Court of the Jurisdiction where the Petition is filed ☐ District Clerk ☐ Municipal Clerk

☐ Other agency, department or entity not listed above: _____

Date of Service: _____

Name of Agent Authorized
to Receive Service: _____

Service Address: _____

Telephone Number: _____

Method Of Service: ☐ Personal ☐ Sheriff ☐ Other: _____

DATED this ____ day of _____, 20__.

Petitioner's/Server's Signature _____
(Should match name at the top of the page)

Petitioner's/Server's Address: _____

Petitioner's/Server's Telephone Number: _____

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PAGE 1 • The Petitioner must fully complete the entire title section (above the solid black line) of the Petition. • The first line refers to the circuit court of the county in which the Petition is to be filed—the Petition must be filed in the county where the Petitioner was charged with the offense. For example: A municipal ordinance violation filed in Huntsville, AL would be properly filed in the Circuit Court of Madison County. • The Petitioner’s name on the second line must match the title of the underlying case—the case the Petitioner is petitioning to have expunged. • The “Petitioner” section must be completed with the Petitioner’s name and CURRENT contact information. • The Petitioner must list the full court case number of the underlying case—the case the Petitioner is petitioning to have expunged. There may be more than one charge on any given case number, but each petition must be limited to one charge. If the Petitioner seeks to have each charge expunged, the Petitioner must fill out a separate petition for each charge. Likewise, a separate petition must be filled out for each qualifying conviction. • Bottom Half of Page 1 through page 4 Sections I through Section V provide qualifying questions about the underlying case. Cases eligible for expungement must satisfy the options provided by each Section. PAGE 5 • The first paragraph on page 5 refers to attachments to the Petition. Section 15-27-3(b) Ala. Code (1975) requires, as a minimum, that petitioners include BOTH a certified record relating to the charge from the <u>local</u> entity (either law enforcement or court) AND a certified criminal record from the <u>state</u> agency - the Alabama Law Enforcement Agency (ALEA). Accordingly, this Petition will be processed even if only the minimum information required under the statute is supplied. HOWEVER, the expungement order may be incomplete if the Court and the Alabama Law Enforcement Agency are not made aware of the location of ALL records relating to the underlying charge. It is, therefore, recommended that the Petitioner attach to the Petition certified copies of arrest, booking, or incarceration records from ALL law enforcement agencies (city, county, and state), and certified copies of case action summaries or dispositions from ALL court clerks (municipal, district, and circuit) who may hold records of any kind relating to the underlying case. • The second paragraph on page 5 corresponds to a section of the statute which requires that petitioners specify the listed items. A response is required as to each point. If any of the items do not apply, the Petitioner must specify that they do not PAGE 6 • The final paragraph of page 5 relates to the disposition of the underlying case. Any and all conditions of the court of disposition must be satisfied in order for the charge to be eligible for expungement. This includes ANY and ALL fines fees or other payments to the court. • Page 6 is an averment under oath that the entire Petition is true and correct and that the Petitioner is eligible for expungement, and includes information from the Petitioner about other expungement petitions. Intentionally giving false information to the Court may carry penalties. • All previous petitions for expungement must be disclosed. Additional pages may be attached, if necessary. • The Petitioner must sign this document under oath and the signature must be verified by an official authorized to administer oaths or a notary public. • At the bottom of page 6 is a section for information about the Petitioner’s attorney and for the attorney’s signature. If the Petitioner IS represented by an attorney, the attorney must sign where indicated. If the Petitioner IS NOT represented by an attorney, the box next to “<i>pro se</i>” must be checked under the Petitioner’s signature. PAGE 7 • Section 15-27-3(b) Ala. Code (1975) requires the Petitioner to serve the “district attorney, the law enforcement agency, and clerk of court of the jurisdiction for which the records are sought to be expunged.” The Petitioner is responsible for providing the Court and ultimately the Alabama Law Enforcement Agency with all the information necessary to contact every court, law enforcement agency or other entity in possession of records the Petitioner seeks to have expunged. • The Petitioner must certify to the Court that each of the courts, agencies, or other entities holding records relating to the underlying case has been served. Page 7 contains the certification form for the courts, agencies, or other entities served with this Petition and their addresses. Additional pages may be attached if necessary. • NOTE: Any information (including mailing addresses) provided regarding courts, agencies, or other entities holding records relating to the underlying case will expedite the execution of an expungement order if one is entered. Without such information, it may not be possible to locate records.		

**AFFIDAVIT OF SUBSTANTIAL
HARDSHIP AND ORDER
(Request for Court-Appointed Attorney and/or
Waiver of Fees)**

Court Case Number

CC-2021-004217

IN THE Circuit COURT OF Montgomery, ALABAMA
(Circuit, District, or Municipal) (Name of County or Municipality)

☒ STATE OF ALABAMA

☐ MUNICIPALITY OF _____ v. Jordan Avery Reyes, Defendant

☐ I, because of financial hardship, am unable to hire an attorney and request that the court appoint one for me.

☐ I, because of financial hardship, am unable to pay for ignition interlock device fees in this case and request that these fees be waived.

☐ I, because of financial hardship, am unable to pay the expungement petition administrative filing fee and request that these fees be waived.

AFFIDAVIT

1. IDENTIFICATION

Full Name	Jordan Avery Reyes	Date of Birth	06/14/1988
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Spouse's Full Name (if married) _____

Complete Home Address 412 Magnolia Avenue
Montgomery, AL 36104

Total Number of People I am Supporting Financially in Household Including Myself _____

Telephone Number (Cell) 334-555-0142 (Home) (Other)

State & Last 4 Digits of Driver License's Number _____ Last 4 Digits of Social Security Number _____

State & East 7 Digits of Driver License's Number _____
Employer's Name & Address _____ Employer's Telephone Number _____

2. ASSISTANCE BENEFITS

Some of the residents in my household or I receive benefits from any of the following sources (*check those which apply*)

☐ Temporary Assistance for Needy Families (TANF) ☐ Food Stamps ☐ Medicaid

☐ Social Security Income (SSI) ☐ Disability ☐ Other: _____

The monthly value of these benefits combined is \$ _____.

3. INCOME/EXPENSE STATEMENT

Monthly Gross Income:

My monthly gross income is \$_____

My spouse's monthly gross income (unless a marital offense) is \$_____

My other monthly earnings (commissions, bonuses, interest income, etc.) are \$ _____

The combined monthly income received by other members of my household is \$ _____

Monthly Unemployment / Worker's Compensation, Social Security, Retirements, etc.	\$	
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Child Support Payment(s)/Alimony Received \$

Other Monthly Income (be specific): _____ \$ _____

3a. TOTAL MONTHLY GROSS INCOME \$

3a. TOTAL MONTHLY GROSS INCOME

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The monthly expenses I pay are:

Rent/Mortgage	\$ _____
Total Utilities: Gas, Electricity, Water, etc.	\$ _____
Food	\$ _____
Clothing	\$ _____
Health Care/Medical Insurance	\$ _____
Car Payment(s)/Transportation Expenses	\$ _____
Loan Payment(s)	\$ _____
Credit Card Payment(s)	\$ _____
Educational/Employment Expenses	\$ _____
Cell Phone Expenses	\$ _____
Other Expenses (<i>be specific</i>): _____	\$ _____

3b. Subtotal
 3c. Child Support Payment(s)/Alimony (Subtotal)
 3d. Exceptional Expenses (Subtotal)

\$ _____
 \$ _____
 \$ _____

3e. TOTAL MONTHLY EXPENSES (Add totals from 3b, 3c., & 3d. monthly only)

Total Monthly Gross Income (3a.) minus Total Monthly Expenses (3e.)

\$ _____
 \$ _____

4. Assets

My assets are as follows:

Cash on Hand/Bank (<i>or otherwise available such as stocks, bonds, certificates of deposit</i>)	\$ _____
Equity in Real Estate (value of property less what you owe)	\$ _____
Equity in Personal Property, etc. (such as the value of motor vehicles, stereo, TV, electronics, furnishing, jewelry, tools, guns, less what you owe)	\$ _____
Other (<i>be specific</i>): _____	\$ _____
Do you own anything else of value? ☐ Yes ☐ No	
(land, house, boat, TV, stereo, jewelry)	
If so, describe: _____	\$ _____
Total Assets	\$ _____

5. Affidavit/Request

I swear or affirm that the answers are true and reflect my current financial status. I understand that a false statement or answer to any question in the affidavit may subject me to the penalties of perjury. I authorize the court or its authorized representative to obtain records of information pertaining to my financial status from any source in order to verify information provided by me. I further understand and acknowledge that, if the court appoints an attorney to represent me, the court may require me to pay all or part of the fees and expenses of my court-appointed counsel, in addition to all or part of the costs associated with this case.

Sworn to and subscribed before me this

_____ day of _____, _____

 (Officer Authorized to Administer Oaths/Notary Public)

(Notary Public Only: My Commission expires on _____ (Date)).

 (Affiant's Signature)

 Jordan Avery Reyes
 (Print or Type Name)

**ORDER ON AFFIDAVIT OF
SUBSTANTIAL HARDSHIP
(Request for Court-Appointed Attorney and/or
Waiver of Fees)**

Court Case Number

IN THE _____ COURT OF _____, ALABAMA
(Circuit, District, or Municipal) (Name of County or Municipality)

☐ STATE OF ALABAMA

☐ MUNICIPALITY OF _____ v. _____, Defendant

The Court has considered the Affiant's testimony, his or her poverty level as measured by the United States poverty guidelines and the potential for substantial hardship that payment by the Affiant would cause. IT IS, THEREFORE, ORDERED AND ADJUDGED BY THE COURT AS FOLLOWS:

☐ The request is **DENIED**.

☐ The Court finds that the Affiant is **NOT INDIGENT** pursuant to § 15-12-1, et seq., Ala. Code 1975.

☐ The case or situation is not one for which the request is applicable.

☐ Other (please specify): _____.

☐ The Affiant is **INDIGENT**. Further, affiant has the following income level based on the United States poverty guidelines:

☐ at or below 125%; or

☐ greater than 125% but less than 200%. However, the Court finds that not providing indigent defense services would cause the Affiant substantial hardship; or

☐ greater than 200%. However, the Affiant is charged with a felony, and the Court finds that not providing indigent defense services would cause the Affiant substantial hardship.

☐ The following **fees shall be assessed as follows**:

☐ Ignition interlock device fees are waived.

☐ Expungement fees shall be waived.

☐ Other (please specify): _____

☐ The request for appointment of counsel is **GRANTED**, and _____ is hereby appointed as counsel for the Defendant.

☐ The Affiant is able to contribute monetarily toward payment of the fees of his or her appointed counsel and/or the fees and costs of this case. Therefore, the Affiant is **ordered to pay \$** _____ to the clerk of court for his or her appointed attorney and \$ _____ toward his or her fees and costs. Said fees and costs shall be due as follows: \$ _____ monthly.

☐ Other (please specify): _____.

IT IS FURTHER ORDERED AND ADJUDGED that the court reserves the right and may order reimbursement of attorney's fees and other expenses, fees, and costs.

Done this _____.
(Date)

(Signature of _____, Judge)
(Printed Name)